

# 25CV01572 Arthur M Rodriguez et al vs General Motors LLC

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-17

Motion: CMC; Motion: Sanctions

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Tentative Ruling: Arthur M Rodriguez et al vs General Motors LLC

Case Number

25CV01572

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/17/2026 - 10:00

Nature of Proceedings

CMC; Motion: Sanctions

Tentative Ruling

Arthur M. Rodriguez, et al. v. General Motors, LLC

Case No. 25CV01572

Hearing Date: August 17, 2026

HEARING: Defendant's Request for Monetary Sanctions in Connection with Motion For Compliance Pursuant To Code of Civil Procedure Section 871.26

ATTORNEYS: For Plaintiffs Arthur M. Rodriguez and Cesar Diaz: Larry Chase, Tyson Smith, Strategic Legal Practices, A Professional Corporation

For Defendant General Motors, LLC: Michael D. Mortenson, Craig A. Taggart, Kristen J. Allison, Mortenson Taggart Adams LLP

#### TENTATIVE RULING:

Defendant's request for monetary sanctions is denied.

#### Background/Analysis:

The first amended complaint (FAC) filed on September 22, 2025, by plaintiffs Arthur M. Rodriguez (Rodriguez) and Cesar Diaz (Diaz) (collectively, Plaintiffs) against defendant General Motors, LLC (GM), is the operative pleading. In the FAC, Plaintiffs allege that on April 4, 2022, they entered into a warranty contract with GM regarding a 2022 Buick Encore (the Vehicle). (FAC, ¶ 6.) The Vehicle was manufactured and distributed by GM, and purchased in Oxnard from GM's authorized dealer. (Ibid.)

Plaintiffs further allege that defects and nonconformities to warranty manifested within the applicable express warranty period, including engine defects, transmission defects, and electrical defects. (FAC, ¶ 11.) GM knew of the defects but concealed them from Plaintiffs, inducing Plaintiffs into purchasing the Vehicle. (FAC, ¶¶ 45-74.) GM failed to promptly replace the Vehicle or to make restitution. (FAC, ¶ 15.)

The FAC asserts five causes of action against GM: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement – concealment.

On February 17, 2026, GM filed an answer to the FAC generally denying its allegations and asserting twenty-six affirmative defenses.

On February 24, GM filed a motion for an order requiring Plaintiffs to appear and comply with an initial deposition under Code of Civil Procedure section 871.26, subdivision (c). That motion included a request for an award of monetary sanctions against Plaintiffs' counsel of record, Strategic Legal Practices, APC, in the sum of \$1,500.

On July 20, 2026, the court ordered:

"For the reasons stated herein, the motion of defendant for compliance pursuant to Code of Civil Procedure section 871.26 is granted, in part. Plaintiffs Arthur M. Rodriguez and Cesar Diaz are each ordered to appear for an initial deposition on July 7, 2026, each not to exceed two hours. The court reserves ruling on defendant's request for an award of monetary sanctions, and continues the motion to August 17, 2026, as to that request. On or before July 31, 2026, the parties shall file a joint report or, if necessary, file and serve individual reports setting forth the status of the initial depositions of plaintiffs ordered herein."

On July 28, 2026, plaintiffs filed a declaration of counsel, Tyson Smith, regarding the status of plaintiffs' initial depositions. By way of the declaration, Smith declares:

"The initial deposition of Plaintiffs ARTHUR RODRIGUEZ and CESAR DIAZ were completed on July 7, 2026. We are currently awaiting the transcripts of both depositions." (Smith decl., ¶ 4.)

Defendant did not comply with the court order to file and serve a report regarding the status of the depositions. While the court considered setting an order to show cause as to why defense counsel should not be sanctioned in an amount up to \$1,500, pursuant to Code of Civil Procedure section 177.5, for failure to comply with the order, it will decline to do so this time. Counsel is reminded that they are obligated to strictly comply with all orders of the court.

Given that the depositions have taken place, no monetary sanctions will issue.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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